

# STATE OF NEW YORK

4735--A

2025-2026 Regular Sessions

## IN ASSEMBLY

February 6, 2025

Introduced by M. of A. CHANDLER-WATERMAN, GIBBS, ZINERMAN, ANDERSON, BURROUGHS, JACKSON -- read once and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law and the labor law, in relation to enacting "Cariol's Law"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as "Cariol's law"  
2 or "duty to intervene".

3 § 2. The executive law is amended by adding a new section 839-a to  
4 read as follows:

5 § 839-a. Excessive use of force; duty to intervene. 1. Definitions.  
6 For the purposes of this section, the following terms shall have the  
7 following meanings:

8 (a) "police officer" shall have the same meaning as provided for in  
9 subdivision thirty-four of section 1.20 of the criminal procedure law;

10 (b) "peace officer" shall have the same meaning as provided for in  
11 section 2.10 of the criminal procedure law;

12 (c) "use of force" shall include, but shall not be limited to:

13 (i) brandishing, pointing, using or discharging a firearm at or in the  
14 direction of another person;

15 (ii) using a chokehold or similar restraint that applies pressure to  
16 the throat or windpipe of a person in a manner that may hinder breathing  
17 or reduce intake of air;

18 (iii) displaying, using or deploying a chemical agent, including, but  
19 not limited to, oleoresin capsicum, pepper spray or tear gas;

20 (iv) brandishing, using or deploying an impact weapon, including, but  
21 not limited to, a baton or billy club;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

LBD04222-03-5

1 (v) brandishing, using or deploying an electronic control weapon,  
2 including, but not limited to, an electronic stun gun, flash bomb or  
3 long-range acoustic device; or

4 (vi) engaging in conduct which results in the death or serious bodily  
5 injury of another person.

6 (d) "objectively reasonable" shall mean a standard used to judge a  
7 police officer's use of force which are reasonable based on the totality  
8 of the circumstances known to such officer at the time of such use of  
9 force;

10 (e) "physical injury" shall have the same meaning as provided for in  
11 subdivision nine of section 10.00 of the penal law; and

12 (f) "serious physical injury" shall have the same meaning as provided  
13 for in subdivision ten of section 10.00 of the penal law.

14 2. Duty to intervene. An on-duty police officer or on-duty peace offi-  
15 cer who is present and observes another police officer or peace officer  
16 using physical force that such officer reasonably believes to be clearly  
17 excessive or beyond that which is objectively reasonable under the  
18 circumstances, shall be required, when such officer has a realistic  
19 opportunity to do so safely, to intervene to prevent the use of such  
20 excessive force.

21 3. Failure to intervene. (a) A police officer or peace officer who  
22 fails to intervene when appropriate may:

23 (i) be held criminally liable for any offense under the penal law for  
24 which failure to intervene satisfies every element of such offense, or  
25 for any offense resulting from such officer's failure to intervene;

26 (ii) be subject to termination by such officer's employer if such  
27 officer:

28 (1) had a realistic opportunity to intervene safely;

29 (2) acted while purporting or pretending to act within the scope and  
30 performance of their official duties; and

31 (3) deprived an individual of rights, privileges, or immunities  
32 secured by the Constitution or the laws of the United States.

33 (iii) be held civilly liable to any aggrieved party when such officer  
34 observes or has reason to know that:

35 (1) excessive force is being used;

36 (2) an individual has been unjustifiably arrested; or

37 (3) any constitutional violation has been committed by a fellow offi-  
38 cer.

39 (b) When a police officer or peace officer fails to intervene in an  
40 incident which results in death or serious physical injury, such inci-  
41 dent shall be referred to the district attorney.

42 (c) The commissioner shall authorize an investigation of any allega-  
43 tions of a police officer's failure to intervene. Such officer may be  
44 placed on administrative leave during the period of such investigation.  
45 Any final disciplinary action shall be subject to arbitration pursuant  
46 to article seventy-five of the civil practice law and rules.

47 (d) Police officers or peace officers who falsely report incidents of  
48 inappropriate or excessive use of force by a fellow police officer or  
49 peace officer may be subject to criminal liability pursuant to section  
50 240.60 of the penal law.

51 4. Liability. Notwithstanding any provision of law to the contrary,  
52 any police officer found to be civilly liable for excessive force shall  
53 be liable for any judgments made against the municipality, state agency  
54 or public authority if such judgment is directly connected to such offi-  
55 cer's use of excessive force.

1 5. Reporting. Upon a police officer's or peace officer's observation  
2 of the use of physical force by another police officer or peace officer  
3 who such officer reasonably believes to be clearly excessive or beyond  
4 that which is objectively reasonable under the circumstances, such offi-  
5 cer shall file a formal complaint with the chief of such officer's  
6 department. Reporting requirements shall apply whether the use of phys-  
7 ical force occurred while the offending officer was on or off-duty.  
8 Failure to report shall be grounds for discipline, including termi-  
9 nation.

10 6. Retroactive protection for intervening officers. Any police officer  
11 or peace officer terminated for reporting the use of physical force by  
12 another police officer who such officer reasonably believes to be clear-  
13 ly excessive or beyond that which is objectively reasonable under the  
14 circumstances, within the twenty year period prior to the effective date  
15 of this section, may have such termination reviewed.

16 § 3. Subdivision 2 of section 740 of the labor law, as amended by  
17 chapter 522 of the laws of 2021, is amended to read as follows:

18 2. Prohibitions. An employer shall not take any retaliatory action  
19 against an employee, whether or not within the scope of the employee's  
20 job duties, because such employee does any of the following:

21 (a) discloses, or threatens to disclose to a supervisor or to a public  
22 body an activity, policy or practice of the employer that the employee  
23 reasonably believes is in violation of law, rule or regulation or that  
24 the employee reasonably believes poses a substantial and specific danger  
25 to the public health or safety;

26 (b) provides information to, or testifies before, any public body  
27 conducting an investigation, hearing or inquiry into any such activity,  
28 policy or practice by such employer; ~~or~~

29 (c) objects to, or refuses to participate in any such activity, policy  
30 or practice~~;~~;

31 (d) if such employee is a police officer, as such term is defined in  
32 subdivision thirty-four of section 1.20 of the criminal procedure law,  
33 observes any police officer using physical force against an individual  
34 that such police officer reasonably believes to be clearly excessive or  
35 beyond that which is objectively reasonable under the circumstances and  
36 such police officer intervenes; or

37 (e) if such employee is a peace officer, as such term is defined in  
38 section 2.10 of the criminal procedure law, observes any peace offi-  
39 cer using physical force against an individual that such peace officer  
40 reasonably believes to be clearly excessive or beyond that which is  
41 objectively reasonable under the circumstances and such peace officer  
42 intervenes.

43 § 4. This act shall take effect immediately.